

24STCV27802 24STCV27802

County: los-angeles

Division: Civil Law and Motion

Department: 734

Hearing date: 2026-07-15

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Case Number: 24STCV27802 Hearing Date: July 15, 2026 Dept: 734

The

following tentative ruling is issued pursuant to Rule of Court 3.1308 at 11:19 AM on July 14, 2026.

Rule

of Court 3.1308(a)(1) provides that a “tentative ruling will become the ruling of the court if the court has not directed oral argument by its tentative ruling and notice of intent to appear has not been given.”

The

Court does not desire oral argument on the motion addressed herein. Notice of intent to appear is REQUIRED pursuant to California Rule of Court 3.1308(a)(1).

No

later than 4:00 p.m. on July 14, 2026, the moving and opposing parties must provide notice to ALL OTHER PARTIES and the staff of Department 734 whether the party intends to (1) appear and argue the motion, or (2) submit to the tentative ruling.

Notice to Department 734 should be sent by

email to , with opposing parties copied on the email. The high volume of telephone calls to Department 734 may delay the Court's receipt of notice, so telephonic notice to 213-830-0776 should be reserved for situations where parties are unable to give notice by email.

Defendants have allegedly failed to pay for goods sold by Plaintiff.

Plaintiff

BGF Industries, Inc. moves for summary judgment or, in the alternative, summary

adjudication.

TENTATIVE RULING

Plaintiff

BGF Industries, Inc.'s motion for summary adjudication is GRANTED as to Issue No. 1 re: the first cause of action, Issue No. 2 re: the third cause of action and Issue No. 3 re: the fourth cause of action.

However,

Plaintiff's separate statement did not address the calculation of pre-judgment interest at all. In this regard, the Court offers the parties two solutions:

(1) the hearing on the motion for summary adjudication will be continued 103 days, allowing Plaintiff to file an amended motion for summary adjudication with a separate statement that includes the calculation of pre-judgment interest, in accordance with the notice requirements set forth in Code Civ. Proc. § 437c(a)(2), or; (2) Defendants can stipulate that the amount of pre-judgment interest to be entered on the judgment is \$37,806.61.

ANALYSIS

Motion For Summary
Adjudication

Discussion

The Court

has reviewed the moving, opposing and reply briefs filed by the parties, but only addresses the points which the Court deems to be material to the disposition of this motion.

Although

this is captioned as a motion for summary judgment and alternative motion for summary adjudication, it only seeks adjudication as to the first, third and fourth causes of action, and is thus solely a motion for summary adjudication.

Plaintiff

BGF Industries, Inc. moves for summary adjudication as follows:

1. ISSUE

ONE: BGF is entitled to summary adjudication in its favor on its First Cause of Action for Breach of Contract.

The first cause of action is asserted against Defendant Graphite Master only.

"The elements of a breach of contract claim are that a contract was formed; that the plaintiff did everything required by the contract; that the defendant did not do something required by the contract; and that the plaintiff was harmed as a result. (Citation omitted.)" (CSAA Ins. Exch. v. Hodroj (2021) 72 Cal.App.5th 272, 276.)

The relevant undisputed facts in Defendant's separate statement are as follows:

35. Prior to July 2, 2025, due to Graphite Master's breach of the July 2023 Plan, Graphite Master owed BGF at least \$284,831.43 (exclusive of pre-judgment interest) as arising from all past-due invoices issued from BGF to Graphite Master.

Evidence:
Coleman Decl., ¶ 18; COE, Ex. F; Wang Decl., ¶ 3; COE, Ex. H (Response to Form Interrogatory No. 17, RFA No. 4).

36. Because Graphite Master's last payment up to this point was in July of 2024, as of August 1, 2024 at the very latest, all Outstanding Invoices were past due for the amount of at least \$284,831.43 (exclusive of pre-judgment interest).

Evidence:
Coleman Decl., ¶ 18.

37. On July 2, 2025, counsel for Fassnacht sent a letter via email which enclosed a check for \$82,455.20, to satisfy the obligations (as well as accrued interest on such obligations) owed by Fassnacht under the Guaranty. Evidence: Coleman Decl., ¶ 19; Wang Decl., ¶ 5; COE Ex. I.

38. Through

subsequent email communications, counsel for Fassnacht confirmed that this check was intended only to extinguish Fassnacht's obligations under the Guaranty, not Graphite Master's outstanding liability in this case.

Evidence:

Coleman Decl., ¶ 19; Wang Decl., ¶ 5; COE Ex. J.

39. After

July 2, 2025, neither Defendant made any further payments towards the amounts owed under the Outstanding Invoices.

Evidence:

Coleman Decl., ¶ 20.

40.

Fassnacht's obligations under the Guaranty totaled at least \$74,061.18 prior to July 2, 2025.

Evidence:

Coleman Decl., ¶ 20; Wang Decl., ¶ 4; COE, Ex. K (Response to Special Interrogatory No. 4).

41. Assuming

Fassnacht's obligations under the Guaranty totaled \$74,061.18, the July 2, 2025 check mentioned above would reduce Defendants' total outstanding balance to at least \$210,770.25 (exclusive of pre-judgment interest), as of August 1, 2024 at the very latest.

Evidence:

Coleman Decl., ¶ 21.

(UF Nos. 35

– 41.)

This

is sufficient to demonstrate that no triable issue of material fact exists as to the breach of contract cause of action against Defendant Graphite Master. The burden shifts to Defendants to demonstrate that a triable issue of material fact exists.

In

the opposing separate statement, Defendants do not cite any evidence which raises a triable issue of material fact as to Defendant Graphite Master's liability. As such, the motion for summary adjudication as to Issue No. 1 re: the first cause of action is GRANTED.

2. ISSUE TWO: BGF is entitled to summary adjudication in its favor on its Third Cause of Action for Account Stated.

The

third cause of action is asserted against Defendant Graphite Master only.

An

account stated is "an agreement, based on prior transactions between the parties, that the items of an account are true and that the balance struck is due and owing." (Citation omitted.) "[A]n element essential to render the account stated is that it receive the assent of both parties, but the assent of the party sought to be charged may be implied from his conduct." (Citation omitted.) For example, "[w]hen a statement is rendered to a debtor and no reply is made in a reasonable time, the law implies an agreement that the account is correct as rendered." (Citation omitted.) .

. . . When an account stated is "assented to, either expressly or impliedly, it becomes a new contract." (Citation omitted.) "The theory of an account stated is that it becomes a contract between the parties for payment of the amount computed to be due without proof of the specific items included therein." (Citation omitted.) Accordingly, an action on an account stated is not based on the parties' original transactions, but on the new contract under which the parties have agreed to the balance due. (Citation omitted.)

(Professional Collection

Consultants v. Lauron (2017) 8 Cal.App.5th 958, 968.)

The

Complaint alleges:

36. In the

June and July 2023 Plans, Defendants acknowledged that the Outstanding Charges were true and accurate, and were due and owing by Graphite Master.

37. These

June and July 2023 Plans constituted new and binding contracts between the parties.

38. . . . In

the July 2023 Plan, Fassnacht again acknowledged the then-currently outstanding balance. See Exhibit B.

39.

Notwithstanding these acknowledgements, Defendants have failed to abide by the terms of the June and July 2023 Plans

40. By

failing to abide the terms of the June and July 2023 Plans, Defendants Graphite Master and Fassnacht breached those contracts and caused damage to BGF in the amount of \$287,074.73.

(Complaint, ¶¶ 36 – 40.)

Plaintiff's

UF Nos. 35 – 41 in support of Issue No. 2 are the same as with Issue No. 1. This is sufficient to demonstrate that no triable issue of material fact exists as to the account stated cause of action against Defendant Graphite Master. The burden shifts to Defendants to demonstrate that a triable issue of material fact exists.

In

the opposing separate statement, Defendants do not cite any evidence which raises a triable issue of material fact as to Defendant Graphite Master's liability. As such, the motion for summary adjudication as to Issue No. 2 re: the third cause of action is GRANTED.

3. ISSUE THREE: BGF is entitled to summary adjudication in its favor on its Fourth Cause of Action for Common Count and Goods Sold and Delivered.

The

fourth cause of action is asserted against Defendant Graphite Master only.

The elements of

a common count for goods sold and delivered are: (i) that Defendant requested, by words or conduct, that Plaintiff deliver goods for the benefit of Defendant; (ii) that Plaintiff delivered the goods as requested; (iii)

that Defendant has not paid Plaintiff for the goods; and (iv) the reasonable value of the goods that were provided. (CACI 371.)

For the reasons discussed above re: Issues Nos. 1 and 2, no triable issue of material fact exists as to Issue No. 3 re: the fourth cause of action as to Defendant Graphite Master's liability.

As such, the motion for summary adjudication as to Issue No. 3 re: the fourth cause of action is GRANTED.

Re: Prejudgment Interest

(a) A person who is entitled to recover damages certain, or capable of being made certain by calculation, and the right to recover which is vested in the person upon a particular day, is entitled also to recover interest thereon from that day, except when the debtor is prevented by law, or by the act of the creditor from paying the debt. This section is applicable to recovery of damages and interest from any debtor, including the state or any county, city, city and county, municipal corporation, public district, public agency, or any political subdivision of the state.

(Civil Code § 3287(a)[bold emphasis added].)

Under Civil Code § 3289(b), "[i]f a contract entered into after January 1, 1986, does not stipulate a legal rate of interest, the obligation shall bear interest at a rate of 10 percent per annum after a breach." However, Plaintiff's separate statement did not address the calculation of pre-judgment interest at all.

It is well established that prejudgment interest is not a cost, but an element of damages. (Citations omitted.) This distinction persuades us that the cost bill is not an appropriate vehicle for requesting interest under section 3287. In our view, prejudgment interest should be awarded in the judgment on the basis of a specific request therefor made before entry of judgment. This view is buttressed by California Rules of Court, rule 875, which provides: "The clerk shall include in the judgment any interest awarded

by the court and the interest accrued since the entry of the verdict." (Citation omitted.)

(North Oakland Medical Clinic v. Rogers (1998) 65 Cal.App.4th 824, 830.)

Code Civ.

Proc. § 437c(b)(1) requires that all material facts be included in the separate statement:

(b)

(1)The motion

shall be supported by affidavits, declarations, admissions, answers to interrogatories, depositions, and matters of which judicial notice shall or may be taken. The supporting papers shall include a separate statement setting forth plainly and concisely all material facts that the moving party contends are undisputed. Each of the material facts stated shall be followed by a reference to the supporting evidence. The failure to comply with this requirement of a separate statement may in the court's discretion constitute a sufficient ground for denying the motion.

(Code Civ. Proc. § 437c(b)(1).)

In

this regard, the Court offers the parties two solutions: (1) the hearing on the motion for summary adjudication will be continued 103 days, allowing Plaintiff to file an amended motion for summary adjudication with a separate statement that includes the calculation of pre-judgment interest, in accordance with the notice requirements set forth in Code Civ. Proc. § 437c(a)(2), or; (2) Defendants can stipulate that the amount of pre-judgment interest to be entered on the judgment is \$37,806.61.